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Case Number: 24NWCV02896 Hearing Date: August 18, 2026 Dept: L

Defendants 6510 Flora Ave

Apartments, Ehinger & Dunlap Inc., and Tawn Thomas' Demurrer the First Amended Complaint is OVERRULED as to the fourth, fifth, and ninth causes of action and is SUSTAINED without leave to amend as to the sixth and eighth causes of action.

Defendants are to file an

Answer within 10 days of this order.

Defendants to give notice.

Background

This is a habitability action. On

August 30, 2024, Plaintiff Jeronimo Quirioz ("Plaintiff") filed this action against Defendants 6510 Flora Ave Apartments, Ehinger & Dunlap Inc., Tawn Thomas, and Does 1 to 20. The Complaint alleged the following: On September 1, 2022, Plaintiff moved into the subject apartment located at 6510 Flora Ave, Bell, California 90201 ("Apartment"). On December 6, 2022, Plaintiff noticed bug bites on his body and thereafter discovered the Apartment was infested with bed bugs. Plaintiff reported the bed bugs to the Apartment management, and a pest control appointment was scheduled. The pest control company treated the apartment for bed bugs, but the treatment was unsuccessful. No further treatments were provided. Separately, the Apartment management tried to evict Plaintiff despite him paying rent days earlier. On January 2, 2023, Plaintiff moved out of the Apartment.

The Complaint alleged the

following causes of action: 1) Battery, 2) Negligence, 3) Intentional Infliction of Emotional Distress, 4) Statutory Breach of Warranty of Habitability (Civil Code §§1941 and 1941.1), 5) Tortious Breach of Implied Warranty of Habitability, 6) Violation of Business & Professions Code §17200 et seq., 7) Breach of Covenant of Quiet Enjoyment, 8) Violation of Civil Code §1942.3, 9) Violation of Civil Code §1942.4, 10) Negligent Violation of Statutory Duty to Maintain Habitable Conditions, 11) Breach of Contract, 12) Private Nuisance, and 13) Public Nuisance.

On March 12, 2026, Defendants Ehinger & Dunlap Inc. and Tawn Thomas' Demurrer to the Complaint was sustained without leave to amend as to the first and third causes of action, sustained with 30 days' leave to amend as to the fifth, eighth, ninth, tenth, and twelfth causes of action, and overruled as to second, fourth, sixth, seventh, eleventh, and thirteenth causes of action. (See 3/12/26 Minute Order.)

On April 16, 2026, Plaintiff filed the First Amended Complaint (FAC). The FAC is largely based on the same material facts as the Complaint. However, the FAC now alleges the following causes of action: 1) Negligence, 2) Statutory Breach of Warranty of Habitability (Civil Code §§ 1941 and 1941.1), 3) Breach of Implied Warranty of Habitability, 4) Violation of Business & Professions Code §17200 et seq., 5) Breach of Covenant of Quiet Enjoyment, 6) Negligent Violation of Statutory Duty to Maintain Habitable Conditions, 7) Breach of Contract, 8) Private Nuisance, and 9) Public Nuisance.

Defendants 6510 Flora Ave Apartments, Ehinger & Dunlap Inc., and Tawn Thomas (hereinafter, "Defendants") now demur to the fourth, fifth, sixth, eighth, and ninth causes of action in the First Amended Complaint.

On August 11, 2026, Plaintiff filed a late opposition. On August 14, 2026, Defendants filed a late reply. The Court will consider both papers in its discretion.

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the

pleading under attack or from matters outside the pleading that are judicially noticeable. (See *Donabedian v. Mercury Ins. Co.* (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Id.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the parties meet and confer “in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a).)

On May 12, 2026, Defense counsel sent an email to Plaintiffs’ counsel regarding this Demurrer, requesting to meet and confer. (Singer Decl., ¶ 3, Exh. A.) Plaintiff’s counsel failed to respond. (*Ibid.*)

The Court finds the meet and confer requirement has not been met. The Court admonishes Defendants for failing to meet and confer according to Code not once, but twice. (See 3/12/26 Minute Order.) Nevertheless, the Court will address the merits of the Demurrer in interests of judicial efficiency.

Discussion

Fourth Cause of Action – Violation of Bus. & Prof.
Code § 17200

Defendants demur to the fourth cause of action on grounds that the FAC fails to allege any unlawful or unfair business practice under the UCL. Defendants further argue that Plaintiff seeks remedies that are not available under the UCL, including compensatory damages.

Further, the Court has previously overruled Defendants' Demurrer to this cause of action made on the grounds that it failed to state a claim. (See 3/12/26 Minute Order.) "[A] defendant cannot demur on the same grounds to a previous demurrer that was overruled [...]" (County of El Dorado v. Superior Court ("El Dorado") (2019) 42 Cal.App.5th 620, 625.)

Nevertheless, the Court finds that an improper remedy is not grounds for a demurrer. (See Venice Town Council, Inc. v. City of Los Angeles ("Venice") (1996) 47 Cal.App.4th 1547, 1562.) Further, a landlord's violation of housing codes can be the basis of a section 17200 claim. (See, e.g., City & County of S.F. v. Sainez (2000) 77 Cal.App.4th 1302, 1308 [code violations constituted unfair business practices]; see also Klein v. Chevron U.S.A., Inc. (2012) 202 Cal.App.4th 1342, 1383 ["[V]irtually any law or regulation—federal or state, statutory or common law—can serve as [a] predicate for a . . . [section] 17200 'unlawful' violation."].) The FAC's other viable causes of action may serve as a predicate for the UCL cause of action.

Accordingly, the Demurrer to the fourth cause of action is **OVERRULED**.

Fifth Cause of Action – Breach of Covenant of Quiet Enjoyment

Defendants argue that the Court previously sustained their Demurrer to "Plaintiff's habitability based tort theory, holding that the alleged duties arise from the lease and are contractual in nature." (Dem., 8:10-11.) Defendants argue that a claim for breach of covenant of quiet enjoyment sounds in a contract claim, and thus, no tort damages may be sought, citing Ginsberg v. Gamson ("Ginsberg") (2012) 205 Cal.App.4th 873, 896–897.

The Court has overruled

Defendants' prior Demurrer to this cause of action on the same grounds, and thus such Demurrer is improper. (See 3/12/26 Minute Order; see also *El Dorado*, supra, 42 Cal.App.5th at p. 625.)

The Court acknowledges that the *Ginsberg* case stood for the proposition that, absent pleading of an actual or constructive eviction, the aggrieved tenant's breach of covenant of quiet enjoyment cause of action merely sounds in contract and the tenant is limited to contractual damages (*Ginsberg*, supra, 205 Cal.App.4th at pp. 896-897.) However, the *Ginsberg* case also recognized that tort damages are recoverable in case of a wrongful eviction—i.e., where the covenant is breached by constructive eviction. (*Id.* at pp. 898-899.) Here, the FAC alleges that Plaintiff suffered physical/emotional harm as a result of the breach (FAC, ¶¶ 103-104) Plaintiff vacated the Apartment on January 2, 2023 (FAC, ¶ 20). At this stage, the Court finds that such allegations are sufficient.

Accordingly, the Demurrer to the fifth cause of action is OVERRULED.

Sixth Cause of Action – Negligent Violation of Statutory Duty

Defendants argue that the FAC fails to cure the defects pointed out in the Court's ruling on Defendants' prior Demurrer to this cause of action. Defendants assert that the negligence cause of action is duplicative of the negligence cause of action, as it rests on the same duty to maintain the premises and the same injuries. Defendants acknowledge that "statutory violations may be used to establish the standard of care in a negligence claim," but "absent a private right of action, such violations do not create an independent cause of action." (*Dem.*, 9:7-9.)

The negligent violation of statutory duty cause of action alleges that 1) Defendants owed Plaintiff a statutory duty to maintain the Apartment under Health and Safety Code section 17920.3 and Civil Code sections 1941 and 1941.1, and 2) Defendants breached these duties, and 3) Plaintiff was harmed. (FAC, ¶¶ 107-111.)

In ruling on Defendants' prior Demurrer to this cause of action, the Court stated the following:

“This

cause of action is duplicative of Plaintiff’s statutory breach of warranty of habitability claims under Civil Code sections 1941 and 1941.1. This cause of action is based on the same alleged conduct—i.e., Defendants’ failure to maintain the premises in a habitable condition and to remedy the bed bug infestation.

Plaintiff

does not identify any separate statutory duty or independent basis of liability beyond the same allegations supporting her negligence and statutory warranty claims. Because this cause of action merely restates the same duty and breach, it adds nothing substantively distinct and is therefore redundant.”

(3/12/26 Minute Order.)

The Court finds that this

cause of action as alleged in the FAC suffers from the same defects. Rather, the sixth cause of action is styled as a negligence per se claim. “The doctrine of negligence per se is not a separate cause of action, but creates an evidentiary presumption that affects the standard of care in a cause of action for negligence.” (Johnson v. Honeywell International Inc. (2009) 179 Cal.App.4th 549, 555, quotation marks and brackets omitted.) Based on the entirety of the FAC, the Court finds that the Defendants’ duty is adequately alleged in other causes of action, and thus, this separate cause of action is unnecessary.

The Court is not persuaded

that granting Plaintiff leave to amend will address such deficiencies.

Accordingly, the Demurrer to

the sixth cause of action is SUSTAINED without leave to amend.

Eighth Cause of Action – Private Nuisance

Defendants argue that the

FAC fails to cure the defects pointed out in the Court’s ruling on Defendants’ prior Demurrer to this cause of action. Firstly, the private nuisance cause of action is duplicative of the negligence claim. Next, the FAC fails to allege an objectively “unreasonable interference” required for a private nuisance claim.

The Court has previously found that the private nuisance cause of action adequately alleged an “unreasonable interference.” (See 3/12/26 Minute Order.) The Court further found that “when a private nuisance claim adds nothing to the negligence claim, such as when both are based on the same acts and seek the same damages for personal injuries, the nuisance claim is not a separate tort but merely a type of damage arising from the same conduct and must be dismissed. (See *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 542.) The Court finds the private nuisance cause of action is based on Defendants’ negligent conduct and breach of the warranty of habitability and is therefore duplicative.” (Ibid.)

The Court finds that the same reasoning applies to the FAC. The private nuisance cause of action arises from the same conduct and damages that serve as the basis for the negligence claim. (See FAC, ¶¶ 119-124.)

The Court is not persuaded that granting Plaintiff leave to amend will address such deficiencies.

Accordingly, the Demurrer to the eighth cause of action is SUSTAINED without leave to amend.

Ninth Cause of Action – Public Nuisance

Defendants argue that “[t]he FAC newly asserts a public nuisance claim, but it fails as a matter of law because it does not allege an interference with a public right.” (Dem., 10:10-11.)

Firstly, the Court notes that a public nuisance cause of action was alleged in the Complaint. The Court has previously overruled Defendants’ Demurrer to this cause of action, finding that Complaint adequately alleged that “1) the nuisance extended beyond Plaintiff’s unit and 2) Plaintiff experienced harm separate from the harm suffered by the public.” (See 3/12/26 Minute Order.) Thus, the Demurrer is improper. (See also *El Dorado*, supra, 42 Cal.App.5th at p. 625.)

Accordingly, the Demurrer to the ninth cause of action is OVERRULED.